



Pool Competitions Act 1971

1971 CHAPTER 57

An Act to make provisions as respects certain competitions conducted by registered pool promoters.

[27th July 1971]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If a registered pool promoter satisfies the Gaming Pool Board for Great Britain (in this Act called "the Board") competitions that in the qualifying period he held at least 9 competitions—

(a) each of which was a competition for prizes depending on sporting events, being a competition for prizes as defined by this Act, and

(b) each of which fulfilled the conditions in subsection (2) below,

the Board shall, subject to the provisions of this Act, grant a certificate to the registered pool promoter.

(2) The said conditions are that—

(a) each of the said competitions for prizes has been to the financial benefit of a society established and conducted wholly or mainly for one or more of the following purposes, that is—

(i) charitable purposes,

(ii) participation in or support of athletic sports or games or cultural activities,

(iii) purposes which, not being described in paragraph (i) or (ii), are neither purposes of private gain nor purposes of any commercial undertaking; and

(b) each of the said competitions for prizes would have constituted pool betting business complying with the

1963 c. 2.

requirements of paragraph 13 of Schedule 2 to the Betting, Gaming and Lotteries Act 1963 (conduct of registered pool promoter's business) on the assumption that the entries and entry moneys were bets and stakes, that all the competitors had made forecasts as to the outcome of the relevant sporting events and the prizes had been for making such forecasts.

(3) If a registered pool promoter (in this subsection called "the successor") satisfies the Board—

- (a) that he is carrying on the business, or a substantial part of the business, which was carried on during the qualifying period by some other registered pool promoter, and
- (b) that the other promoter is, in respect of competitions held as part of that business, entitled to a certificate under this section (or would be so entitled but for death or dissolution),

the Board may, if they think fit, grant a certificate under this Act to the successor.

(4) A certificate under subsection (1) or subsection (3) above—

- (a) shall name or identify the society or societies benefiting from the said competitions for prizes held in the qualifying period, and
- (b) if the certificate is under subsection (3) above, shall name or identify the promoter previously carrying on the business,

and in relation to a licence granted under this Act to the holder of the certificate "the relevant society" means the society or societies so named or identified.

(5) An application for a certificate under this section shall be in writing, and shall be in such form, and accompanied by such information, as the Board may require.

(6) For the purposes of this section a society shall not be regarded as established and conducted for purposes of private gain by reason only that proceeds of any entertainment, lottery, gaming or amusement promoted on behalf of the society are applied to any purpose calculated to benefit the society as a whole, and that their application for that purpose results in benefit to any person as an individual.

(7) In the application of subsection (2) above to Scotland "charitable" is to be construed in the same way as if it were contained in the Income Tax Acts.

Licence to
promote
competitions.

2.—(1) The Board may grant to a person who is a registered pool promoter and who holds a certificate under this Act a licence which, subject to provisions of this section, authorises the holder of the licence to hold competitions for prizes.

(2) The Board shall, so far as practicable, exercise their powers of granting licences under this Act so as to secure that each of the societies named or identified in a certificate under this Act will derive financial benefit from competitions for prizes authorised by a licence under this Act.

(3) The Board shall attach to a licence under this Act such terms and conditions as are in their opinion needed for the purpose set out in subsection (2) above and, in discharging their duty, the Board shall have regard—

- (a) to the yearly amount of financial benefit which any relevant society is likely to derive from competitions for prizes authorised by the licence, and
- (b) to the amount of the financial benefit which the society derived from competitions for prizes held in the qualifying period.

(4) The Board shall attach to a licence under this Act such terms and conditions as in their opinion are appropriate—

- (a) for the purpose of safeguarding the interests of competitors,
- (b) for affording to competitors full information as respects the rules of the competitions authorised by the licence, and any related schemes or arrangements, the disposal and application of money collected by way of entry money or otherwise, and the identities of the relevant society and of the holder of the licence.

(5) For the purposes of—

- (a) paragraph 13 of Schedule 2 to the Betting, Gaming and 1963 c. 2. Lotteries Act 1963,
- (b) Part III of that Act (lotteries), and
- (c) section 3 of the Betting Duties Act 1963 (definition of 1963 c. 3. pool betting)

where a competition for prizes is duly authorised by a licence under this Act—

- (i) entries and entry payments under the competition shall be deemed to be bets and stakes respectively, and
- (ii) competitors in the competition shall be deemed to make forecasts (if and in so far as they would not otherwise be regarded as doing so),
- (iii) the competition shall be deemed to be for prizes for making forecasts as to sporting events.

Licences:
further
provisions.

3.—(1) Subject to the preceding provisions of this Act, the Board may attach to a licence under this Act any terms or conditions, and in particular—

- (a) any terms or conditions as to the number or kind of competitions for prizes authorised by the licence,
- (b) any terms or conditions as to entry money, or any other money to be collected for or in connection with a competition for prizes authorised by the licence, and the manner in which the money may be collected.

(2) A licence under this Act may be cancelled at any time, and any term or condition may be imposed or varied or withdrawn at any time.

(3) If the Commissioners of Customs and Excise certify to the Board that any pool betting duty payable by the holder of a licence under this Act remains unpaid, the Board shall cancel the licence.

(4) The period for which a licence under this Act is valid shall be stated in the licence, and shall be a period of twelve months, or such shorter period as may be requested by the applicant.

This subsection is without prejudice to the power to grant a licence by way of renewal of a licence due to expire, or expired, and without prejudice to the provisions of this section about the cancellation of licences.

(5) If a licence under this Act provides that entry money, or any other money to be collected for or in connection with a competition for prizes authorised by the licence, may be collected by house to house collectors, the House to House Collection Act 1939 shall not apply to money collected in accordance with the provisions so made.

(6) Subject to the provisions of subsection (3) of this section, it shall be within the entire discretion of the Board—

- (a) whether to grant or refuse an application for a licence under this Act,
- (b) whether to cancel a licence under this Act at any time, and
- (c) whether to impose or vary or withdraw any terms or conditions as respects a licence under this Act, either on the granting of the licence or at any subsequent time,

and it shall be within their entire discretion to determine the nature of any terms or conditions as respects a licence under this Act.

(7) The Board shall have power to entertain an application for a licence under this Act before the applicant has been granted a certificate under this Act (but not to grant a licence to a person who is not the holder of a certificate).

(8) A person who fails to comply with any term or condition attached to a licence under this Act shall be guilty of an offence under this Act and liable—

- (a) on summary conviction to a fine not exceeding £400,
- (b) on conviction on indictment to a fine.

4.—(1) The Board shall have power to require the holder of a licence under this Act—

- (a) to supply to the Board such information relating to any business carried on by him which involves the holding of competitions, lotteries or pool betting as the Board may from time to time specify,
- (b) to allow the Board to inspect and make copies of, or of extracts from, any books, records or other documents relating to that business,
- (c) to afford to the Board such other facilities in matters relating to that business as the Board may from time to time specify,
- (d) to make such periodical returns relating to that business as the Board may from time to time specify.

Powers to
require
information,
etc.

(2) The powers under paragraphs (a), (b) and (c) of subsection (1) above shall also be exercisable as respects a person who has applied for a licence under this Act pending the determination of his application.

(3) The Board shall have power to require the accountant appointed under paragraph 12 of Schedule 2 to the Betting, Gaming and Lotteries Act 1963 (registering authority to appoint accountant in the case of each registered pool promoter) as respects the business of the holder of a licence under this Act, or, pending the determination of his application, as respects the business of a person who has applied for a licence under this Act—

- (a) to supply to the Board such information relating to that business as the Board may from time to time specify,
- (b) to allow the Board to inspect and make copies of, or of extracts from, any books, records or other documents held by the accountant and relating to that business.

(4) A person who knowingly or recklessly supplies or makes available information which is false in a material particular—

- (a) in pursuance of a requirement under this section, or

(b) in pursuance of a term or condition contained in a licence under this Act, or
 (c) for the purpose of procuring the grant of a certificate or the grant of a licence under this Act, or in connection with any application concerning any term or condition attached or to be attached to a licence under this Act, shall be guilty of an offence under this Act and liable—

- (i) on summary conviction to a fine not exceeding £400,
- (ii) on conviction on indictment to a fine.

(5) Without prejudice to any other provisions of this Act about the terms and conditions which may be attached to a licence under this Act, if it appears to the Board that the applicant for, or the holder of, a licence under this Act has failed to comply with any requirement under this section, the Board may refuse the application or, as the case may be, cancel the licence.

1963 c. 2.

(6) Paragraph 21 of Schedule 2 to the Betting, Gaming and Lotteries Act 1963 (statements to competitors) shall not apply in the case of a competition authorised by a licence under this Act.

Fees
chargeable
by Board.

5.—(1) The Secretary of State may by order prescribe fees to be payable to the Board—

- (a) in respect of an application for a certificate under this Act, or for a grant of a licence under this Act, or for the variation or withdrawal of terms or conditions attached to such a licence,
- (b) in respect of the grant of a certificate under this Act, and
- (c) in respect of the grant of a licence under this Act and, if in pursuance of an application, in respect of the variation or withdrawal of any term or condition attached to a licence under this Act.

(2) An order under this section may, instead of specifying the amount of any fee, authorise the Board to determine the amount subject to such limits, or in accordance with such provisions, as may be prescribed by the order.

(3) An order made under this section may be varied or revoked by a subsequent order so made.

(4) An order under this section shall be made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

Consent
required
for certain
prosecutions.

6.—(1) This section has effect as respects an offence alleged to have been committed in connection with a competition for prizes held by a registered pool promoter under—

- (a) section 42 or section 47 of the Betting, Gaming and Lotteries Act 1963 (offences in connection with lotteries and certain prize competitions).

(b) paragraph 29(2) of Schedule 2 to that Act so far as it relates to paragraph 13 of that Schedule (conduct of registered pool promoter's business), or

(c) any provision of the Gaming Act 1968.

1968 c. 65.

(2) No proceedings shall be instituted in England and Wales for any such offence except by or with the consent of the Director of Public Prosecutions—

(a) if the proceedings are instituted at a time when the Board are considering whether to grant or refuse an application made by the promoter for a certificate or licence under this Act, or

(b) if the Board have granted the promoter a licence under this Act, and the proceedings are in respect of something done before the grant of the licence.

(3) This section shall not prevent the issue or execution of a warrant for the arrest of any person in respect of an offence, or the remanding in custody or on bail of any person charged with an offence.

7.—(1) In this Act, unless the context otherwise requires—

Supplemental.

“the Board” means the Gaming Board for Great Britain.

“qualifying period” means the period of twelve months ending with 24th November 1970,

“registered pool promoter” has the meaning given by section 4(2) of the Betting, Gaming and Lotteries Act 1963 c. 2. 1963,

“society” includes a club, institution, organisation or association of persons, by whatever name called, and any separate branch or section of such a club, institution, organisation or association.

(2) In this Act “competition for prizes” means a competition for prizes where—

(a) the allocation of prizes depends upon the outcome of sporting events, and

(b) each competitor has the right to forecast the outcome of those events, and

(c) prizes can be won both where a competitor forecasts the outcome of events, and where he does not,

and “competition” includes any scheme or arrangement for the distribution of prizes among persons who have paid to participate, and “competitor” shall be construed accordingly.

(3) A competition for prizes shall not be treated as authorised by a licence under this Act if the licence is not in force at the

time of the sporting event on which the allocation of prizes depends, or if there has been a failure to comply with any term or condition of the licence before that time.

(4) In considering for the purposes of this Act whether and to what extent a society has derived, or may derive, financial benefit from a competition, account shall be taken of—

(a) all receipts irrespective of the method by which the amount payable was calculated or arrived at, and whether or not derived from entry moneys, and

(b) any expenses incurred or outgoings to be borne by the society as part of the arrangements under which they obtain the financial benefit.

(5) Where an offence under this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to have been attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

**Duration
of Act.**

8.—(1) This Act shall, subject to the provisions of this section, cease to have effect at the expiration of the period of five years beginning with the date on which it is passed.

(2) The Secretary of State may by order contained in a statutory instrument from time to time extend, or further extend, the said period of five years to a date specified in the order, being a date not later than twelve months from the date on which this Act would, apart from the order, cease to have effect.

(3) An order shall not be made under this section unless a draft of the order has been approved by resolution of each House of Parliament.

1889 c. 63.

(4) When this Act ceases to have effect, section 38(2) of the Interpretation Act 1889 (saving as to effect of repeals) shall apply as if this Act had then been repealed by another Act.

**Financial
provisions.**

9.—(1) There shall be paid out of money provided by Parliament any expenses incurred by the Board in consequence of, or in connection with, the provisions of this Act.

(2) Any fees received by the Board under this Act shall be paid into the Consolidated Fund.

**Short title
and extent.**

10.—(1) This Act may be cited as the Pool Competitions Act 1971.

(2) This Act shall not extend to Northern Ireland.